

Court No. - 21

Case :- WRIT - C No. - 464 of 2024

Petitioner :- Smt Juhi Bano

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Amrita Singh, Amrita Singh

Counsel for Respondent :- Narendra Kumar Tiwari, C.S.C., Krishna Agarawal, C.S.C., Krishna Agarawal, Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, Acting Chief Justice

Hon'ble Kshitij Shailendra, J.

Put up as fresh on 06.02.2024.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, ACJ)

Order Date :- 1.2.2024

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Chief Justice's Court

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Hon'ble Arun Bhansali, Chief Justice

Hon'ble Manoj Kumar Gupta, J.

1. This petition has been filed by the petitioner, aggrieved of the order dated 23.08.2023 passed by respondent no. 3, whereby, while disposing of the representation made by the petitioner pursuant to the direction given by this Court vide order dated 04.08.2023 passed in Writ-C No. 25874 of 2023 with reference to the provisions of the U.P. Electricity Supply Code, 2005, the petitioner was called upon to make payment of the entire dues.

2. Counsel for the petitioner, inter alia, made submissions based on the registered sale-deed dated 12.03.2018 and stipulations contained therein that the petitioner was not liable to make payment of the outstandings prior to the date of purchase by him.

3. Counsel for the respondents, with reference to the provisions of the U.P. Electricity Regulatory Commission (Consumer Grievance Redressal Forum) Regulations, 2022, made submissions that for the grievance raised by the petitioner, the petitioner can approach the Consumer Grievance Redressal Forum under Clause 7.10 of the Supply Code, 2005 and, therefore, the petition, which involves the disputed questions of fact, may not be entertained.

4. Counsel for the petitioner, with reference to the definition of the 'Consumer', as contained in Supply Code, 2005, made submissions that as the petitioner does not fall within the said definition of 'Consumer', the plea pertaining to the availability

of remedy before the Consumer Grievance Redressal Forum is baseless.

5. Counsel for the respondents, with reference to the provisions of Clause 2.1(b) of Regulations, 2022, made submissions that as the Regulations, 2022 defines the applicant's meaning as "an owner or occupier of any premises who files an application form with a distribution licensee for supply/connection of electricity etc.", the case of the petitioner would be governed by the Regulations, 2022.

6. Having considered the submissions made by counsel for the parties, we are of the firm opinion that the nature of plea raised by the petitioner in view of the definition of the 'applicant', as contained in Regulation 2.1(b) of the Regulations, 2022 can very well be examined by the Consumer Grievance Redressal Forum.

7. In view of the above situation, wherein the petitioner has an effective remedy before the Forum, we do not find it a fit case for exercising jurisdiction under Article 226 of the Constitution of India.

8. Consequently, the petition is dismissed leaving it open to the petitioner to approach the Forum in accordance with law.

Order Date :- 6.2.2024

P.Sri./RK

(Manoj Kumar Gupta, J)

(Arun Bhansali, CJ)